

Calendar Line 5

Case Name: *Goodman v. Boba Guys, Inc.*
Case No.: 21CV383976

This action was filed on July 2, 2021, and N. William Metke of The Mitzel Group LLP (“Counsel”) is counsel of record for defendant The Boba Guys, Inc. (“Defendant”). Counsel has filed a motion to be relieved as counsel for Defendant under Code of Civil Procedure section 284(2). The motion is unopposed. As discussed below, the Court GRANTS the motion.

I. Legal Standard

Motions to be relieved as counsel are technical and governed by rule 3.1362 of California Rules of Court (“Rule 3.1362”). Notice and motion must be directed to the client on Judicial Council Form MC-051. No memorandum is required. (Rule 3.1362(a) & (b).) Counsel must provide a declaration on Judicial Council Form MC-052 stating “in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1).” (Rule 3.1362(c).)

The notice of motion and motion, the declaration, and the proposed order must be served on the client and all parties “by personal service, electronic service, or mail.” (Rule 3.1362(d)). Rule 3.1362(d) sets forth the service requirements, as follows:

If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either:

(A) The service address is the current residence or business address of the client;
or

(B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved.

(Rule 3.1362(d).)

The proposed order relieving counsel must be prepared on the Order Granting Attorney’s Motion to Be Relieved as Counsel—Civil (form MC-053) and must be lodged with the court with the moving papers. The order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. If no hearing date is presently scheduled, the court may set one and

specify the date in the order. After the order is signed, a copy of the signed order must be served on the client and on all parties that have appeared in the case. The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court.

(Rule 3.1362(e).)

II. Discussion

Counsel attests that withdrawal is required or permitted by rule 1.16(b) of the California Rules of Professional Conduct because Defendant's conduct has rendered it unreasonably difficult for Counsel to carry out the representation effectively. (Counsel's Declaration, MC-052, ¶ 2.) Counsel also states that Defendant has breached a material term of an agreement relating to the representation and has failed to cure that breach after a reasonable warning that this motion would follow. That is a sufficient statement of reasons "in general terms and without compromising the confidentiality of the attorney-client relationship." (Rule 3.1362(c).)

Counsel further attests that Defendant was served by mail at its last known address with copies of the motion papers, and that Counsel confirmed within the past 30 days that the address is current by other means—namely, by confirmed FedEx delivery and email. (MC-052, ¶ 3.a(2), 3.b(1)(d).) The proof of service filed June 4, 2026 reflects that the moving papers were served on Defendant at 245 Visitacion Avenue, Brisbane, CA 94005 by mail, by FedEx overnight delivery, and by email, and on counsel for plaintiff by email. The service requirements of Rule 3.1362(d) are therefore satisfied.

Counsel has also used the required Judicial Council forms: the notice of motion and motion on form MC-051, the supporting declaration on form MC-052, and the proposed order on form MC-053, lodged with the moving papers. (Rule 3.1362(a)-(c) & (e).) The proposed order identifies the next scheduled hearing in this action—a final approval currently hearing set for September 9, 2026 at 1:30 p.m. in Department 5. (MC-053, item 7.) No trial date is presently set. (MC-053, item 9.a.) As addressed below, the location of the final approval hearing must be revised by counsel to Department 8.

The Court finds that Counsel has served Defendant by mail, submitted a declaration establishing that the requirements of Rule 3.1362 have been satisfied, shown sufficient reason

why the motion to be relieved as counsel should be granted, and shown why Counsel brought the instant motion under Code of Civil Procedure section 284(2) instead of filing a consent under section 284(1).

Accordingly, the motion is GRANTED. Consistent with item 5.a of the proposed order, Counsel is relieved as counsel of record for Defendant effective upon the filing of the proof of service of the signed order upon Defendant. (Rule 3.1362(e).)

III. Conclusion

The motion of N. William Metke of The Mitzel Group LLP to be relieved as counsel of record for defendant The Boba Guys, Inc. is GRANTED. Counsel is relieved effective upon the filing of the proof of service of the signed order upon Defendant. Counsel shall serve a copy of the signed order on Defendant and on all parties that have appeared in this action and shall file the proof of service of the signed order. (Rule 3.1362(e).) The final approval hearing remains set for September 9, 2026 at 1:30 p.m. in Department 8. The Proposed Order shall be promptly revised by counsel to revise the September 9 hearing location to Department 8.

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Calendar Line 6

Case Name: *Running v. United Security Specialists, Inc.*
Case No.: 23CV423933

This is a putative class and representative wage-and-hour action brought by plaintiff Tim Running (“Plaintiff”) against defendant United Security Specialists, Inc. (“USS”). According to the parties’ Joint Case Management Conference Statement filed January 7, 2026, Plaintiff’s individual claims have been submitted to arbitration and his claims under the Private Attorneys General Act are stayed pending completion of that arbitration. Counsel of record for USS, Courtney C. Wenrick of Womble Bond Dickinson (US) LLP (“Counsel”), has filed a motion to be relieved as counsel. No opposition has been filed. As discussed below, the Court GRANTS the motion.

I. Legal Standard

Motions to be relieved as counsel are technical and governed by rule 3.1362 of California Rules of Court (“Rule 3.1362”). Notice and motion must be directed to the client on Judicial Council Form MC-051. No memorandum is required. (Rule 3.1362(a) & (b).) Counsel must provide a declaration on Judicial Council Form MC-052 stating “in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1).”¹ (Rule 3.1362(c).)

The notice of motion and motion, the declaration, and the proposed order must be served on the client and all parties “by personal service, electronic service, or mail.” (Rule 3.1362(d)). Rule 3.1362(d) sets forth the service requirements, as follows:

If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either:

¹ Code of Civil Procedure section 284 provides, “The attorney in an action or special proceeding may be changed at any time before or after judgment of final determination, as follows: [¶] 1. Upon the consent of both client and attorney, filed with the clerk, or entered upon the minutes; [¶] 2. Upon the order of the court, upon the application of either client or attorney, after notice one to the other.”